

25STCV34643 25STCV34643

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Case Number: 25STCV34643 Hearing Date: July 13, 2026 Dept: 514

Blaker v. Inside Higher Ed, Inc.

25STCV34643

Defendant's Demurrer to First Amended Complaint

Tentative Ruling

The demurrer is overruled.

Preliminary Matter

On February 19, 2026, Defendant filed a demurrer to the initial complaint and listed as counsel both attorneys admitted to practice in California and two attorneys with offices in New York with the designation "pro hac vice to be filed." The same out-of-state attorneys are listed with same designation on the demurrer to the First Amended Complaint (filed May 13) and the reply (filed July 6).

This is improper. Only attorneys admitted to practice in the State of California or attorneys admitted pro hac vice should be listed on pleadings. If the New York counsel wish to provide legal services to the Defendant in connection this action, counsel must promptly file pro hac vice applications.

Background

On November 26, 2025, Brian Blaker

("Plaintiff") filed the complaint in this action.

On April 13, 2026, Plaintiff a First Amended Complaint (the "FAC"), naming as defendants Inside Higher Ed, Inc. ("Defendant") and Does 1 through 15 and asserting two causes of action: (1) for violations of California's "Trap and Trace" Law, Penal Code section 638.51; and (2) for aiding and abetting violations of the Trap and Trace Law.

On May 13, 2026, Defendant filed this demurrer to Plaintiff's FAC.

On June 22, 2026, Plaintiff filed an opposition, along with objections to evidence submitted by Defendant in connection with the demurrer.

On July 6, Defendant filed a reply, along with a response to Plaintiff's objections.

The trial date has not yet been set.

Legal Standard

Code of Civil Procedure section 430.10 provides:

"The party against whom a complaint or cross-complaint has been filed may object, by demurrer or answer as provided in Section 430.30, to the pleading on any one or more of the following grounds:

...

(e) The pleading does not state facts sufficient to constitute a cause of action.

(f) The pleading is uncertain. As used in this subdivision, "uncertain" includes ambiguous and unintelligible. ..."

A general demurrer under Code of Civil Procedure section 430.10, subdivision (e), tests whether the complaint states a

cause of action. (Lewis v. Safeway, Inc. (2015) 235 Cal.App.4th 385, 388; Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747; see also 1 Weil & Brown, California Practice Guide: Civil Procedure Before Trial [2025], ¶ 7:40.)

“We treat the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law. We also consider matters which may be judicially noticed.” (Centinela Freeman Emergency Medical Associates v. Health Net of California (2016) 1 Cal.5th 994, 1010; Blank v. Kirwan (1985) 39 Cal.3d 311, 318; accord Yvanova v. New Century Mortgage Corp. (2016) 62 Cal.4th 919, 924; Marina Pacific Hotel and Suites v. Fireman's Fund Insurance Company (2022) 81 Cal.App.5th 96, 104.) All reasonable inferences must be drawn in favor of the pleading. (Schifando v. City of Los Angeles (2003) 31 Cal.4th 1074, 1081; Marina Pacific Hotel and Suites, supra, 81 Cal.App.5th at p. 104.) Even “improbable” facts alleged in the pleading must be accepted as true. (Marina Pacific Hotel and Suites, supra, 81 Cal.App.5th at pp. 104-105.)

Courts must “liberally construe the pleading” and “give the complaint a reasonable interpretation, reading it as a whole and its parts in context.” (Id. at p. 105.)

A complaint must contain a “statement of facts constituting the cause of action, in ordinary and concise language.” (Code Civ. Proc., § 425.10, subd. (a)(1); see also C.A. v. William S. Hart High School Dist. (2012) 53 Cal.4th 861, 872 [“the complaint need only allege facts sufficient to state a cause of action”].) Ordinarily, a complaint “is sufficient if it alleges ultimate rather than evidentiary facts.” (Doe v. City of Los Angeles (2007) 42 Cal.4th 531, 550.) Ultimate facts are those upon which “the right to recover depends” and are “essential” to the cause of action. (Estes v. Eaton Corp. (2020) 51 Cal.App.5th 636, 643 fn. 2; see also 1 Weil & Brown, supra, ¶ 6:124.)

A plaintiff is required to plead only “the essential facts of [its] case” that are sufficient “to acquaint a defendant with the nature, source and extent of [the] cause of action.” (Doe, supra, 42 Cal.4th at p. 550.) Mere boilerplate or pleading of

legal conclusions is not sufficient. (Id. at p. 551 fn.

5.) But a plaintiff need not allege “each evidentiary fact that might eventually form part of plaintiff’s proof” at trial. (C.A., supra, 53 Cal.4th at p. 872.)

A demurrer for uncertainty under Code of Civil Procedure section 430.10, subdivision (f), is “disfavored” and will be sustained “only if the pleading is so incomprehensible that a defendant cannot reasonably respond.” (A.J.

Fistes Corp. v. GDL Best Contractors (2019) 38 Cal.App.5th 677, 695; accord Mahan

v. Charles W. Chan Ins. Agency, Inc. (2017)

14 Cal.App.5th 841, 848, fn. 3.) A complaint need not be “a model of clarity” and must only contain sufficient allegations to put the defendants on notice of the claims against them. (A.J. Fistes

Corp., supra, 38 Cal.App.5th at p. 695.) As the Court of Appeal has observed, “where a complaint is in some respects uncertain, ... ambiguities can be clarified under modern discovery procedures.” (Khoury

v. Maly’s of Cal., Inc. (1993) 14 Cal.App.4th 612, 616; see also 1 Weil & Brown, supra, ¶¶ 7:85-7:86.)

A demurrer can be sustained only when it disposes of an entire cause of action. (Poizner v. Fremont General Corp. (2007) 148 Cal.App.4th 97, 119; Kong v. City of Hawaiian Gardens Redev. Agency (2003) 108 Cal.App.4th 1028, 1046.)

Leave to amend should be granted when “there is a reasonable possibility that the defect can be cured by amendment.” (Centinela Freeman, supra, 1 Cal.5th at p. 1010; Blank, supra, 39 Cal.3d at p. 318; Shaeffer v. Califia Farms (2020) 44 Cal.App.5th 1125, 1145.)

Meet
and Confer

Before filing a demurrer, “the demurring party shall meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer.” (Code Civ. Proc. § 430.41, subd.

(a.) The requirement is met. (Korzenik Decl., ¶ 7.)

Objections
to Evidence

A
demurrer must be based on the allegations contained in the pleading and materials subject to judicial notice. (Code Civ. Proc., § 430.30, subd. (a).)

In
support of its demurrer, Defendant offers two exhibits attached to the declaration of Tim Phang. Defendant does not request judicial notice of the exhibits.

Plaintiff's objection to these two exhibits is
sustained.

Discussion

The California Invasion of Privacy Act ("CIPA") is codified at Penal Code sections 630 through 638.55. Penal Code section 638.51 provides, in pertinent part:

"(a) Except as provided in subdivision (b), a person may not install or use a pen register or a trap and trace device without first obtaining a court order pursuant to Section 638.52 or 638.53.

(b) A provider of electronic or wire communication service may use a pen register or a trap and trace device for any of the following purposes:

(1) To operate, maintain, and test a wire or electronic communication service.

(2) To protect the rights or property of the provider.

(3) To protect users of the service from abuse of service or unlawful use of service.

(4) To record the fact that a wire or electronic

communication was initiated or completed to protect the provider, another provider furnishing service toward the completion of the wire communication, or a user of that service, from fraudulent, unlawful, or abusive use of service.

(5) If the consent of the user of that service has been obtained.

....”

(Penal Code, § 638.51.)

A “trap and trace device” is defined as:

“a device or process that captures the incoming electronic or other impulses that identify the originating number or other dialing, routing, addressing, or signaling information reasonably likely to identify the source of a wire or electronic communication, but not the contents of a communication.”

(Penal Code, § 638.50, subd. (c).)

And “electronic communication” is defined as:

“any transfer of signs, signals, writings, images, sounds, data, or intelligence of any nature in whole or in part by a wire, radio, electromagnetic, photoelectric, or photo-optical system, but does not include any of the following:

(A) Any wire communication defined in [Penal Code section 629.51, subd. (a)(1)].

(B) Any communication made through a tone-only paging device.

(C) Any communication from a tracking device.

(D) Electronic funds transfer information stored by a financial institution in a communications system used for the electronic storage and transfer of funds.”

(Penal Code, § 629.51, subd. (a)(2); see

also Penal Code, § 638.50, subd. (a) [providing that the definition of “electronic communication” in section 629.51 applies to the CIPA].)

In the FAC, Plaintiff alleges that Defendant operates its website in a manner (including using software provided by LinkedIn Corporation) that captures identifying information about every visitor. (FAC, ¶¶ 2-3, 5-6, 29-31, 40-49.) Plaintiff alleges that he visited Defendant’s website on March 21, 2025, and Defendant captured his identifying information without his consent. (FAC, ¶¶ 4-5, 32.) The captured identifying information, Plaintiff alleges, is economically valuable and is used to support (among other things) targeting of advertisements. (FAC, ¶¶ 6, 33-39, 43, 54-66.)

Defendant demurs to both causes of action in Plaintiff’s FAC. Defendants makes essentially four arguments: (1) the CIPA does not apply to communications from a tracking device (Mem., at pp. 5-6); (2) the CIPA does not apply to stored profiles of browsing data from third parties (Mem., at pp. 6-7); (3) the CIPA applies only (or primarily) to telephone-related communications, not internet data collection software (Mem., at pp. 6-11); and (4) even if the CIPA applies here, Plaintiff cannot show that the information that Defendant collected or received is reasonably likely to identify Plaintiff (Mem., at pp. 11-14). Defendant also makes a fifth argument in relation to the Second Cause of Action: Defendant argues that it cannot be held liable for aiding and abetting because of the statutory user consent exception under the CIPA (Mem., at p. 15.).

Contrary to Defendant’s first two arguments, Plaintiff does not complain only about the use of communications from a tracking device or the creation of stored profiles of browsing data: Plaintiff alleges that Defendant captures electronic data that identify the website visitor. Contrary to Defendant’s fourth and fifth arguments, Plaintiff alleges that information that identifies him was captured, and it was done so without his consent.

On demurrer, the Court must accept the allegations in the FAC as true and draw all reasonable inferences in favor of the pleading. Applying these

principles here, the Court determines that Plaintiff has sufficiently alleged that Defendant has installed on its website and uses a “trap and trace” device in violation of the CIPA. If, as Defendant contends, the allegations in the FAC are not true, Defendant may present its fact-based defense at trial (or, if the facts are undisputed, on a motion for summary judgment) and show, for example, that it did not capture identifying information about Plaintiff through its website or that Defendant consented to the capture.

Turning to Defendant’s third argument, the Court understands that there are trial court rulings on both sides of this issue, and the Court of Appeal has not yet addressed this issue in a published opinion. Viewing the plain language of the statute, and construing the statute liberally to effect its underlying purpose of protecting the privacy of consumers and other individuals, this Court concludes that the CIPA is broad enough to cover website visits and is not limited only to communications involving landline or cellular telephones.

The demurrer is overruled.

Conclusion

The Court **OVERRULES** the demurrer filed by Defendant Inside Higher Ed, Inc.

Defendant

Inside Higher Ed, Inc. is to file an answer or other responsive pleading by no later than July 27, 2026.

Moving party is ordered to give notice.